IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH-V

C.P.(CAA)/114(ND)2022
IN
CA (CAA)/44/ND/2022

Under Sections 230 to 232 of the Companies Act, 2013 read with Companies (Compromise, Arrangements ad Amalgamation Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

Adgyde Solutions Pvt Ltd
Reg. off: 206, First Floor, Plot No. 190-191,
Neelkanth Palace, 252-A, Sant Nagar,
New Delhi-110065

...Transferor Company No.1/
Petitioner Company No.1

Momagic Incubation Private Limited
Reg. off: S206, First Floor, Plot No. 190-191,
Neelkanth Palace, 252-A, Sant Nagar,
New Delhi-110065

... Transferor Company No.2/
Petitioner Company No.2

Momagic Technologies Private Limited
Reg. off: I-9 LGF, Lajpat Nagar, Part-III,
New Delhi-110024

... Transferee Company/
Petitioner Company No.3

AND

THEIR RESPECTIVE SHAREHOLDERS

(Hereinafter the Petitioner Company No.1, Petitioner Company No.2 and the Petitioner Company No.3 are collectively referred to as 'the Petitioner Companies')

Coram:

JUSTICE TELAPROLU RAJANI, HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR, HON'BLE MEMBER (TECHNICAL)

Order Delivered on:16.01.2023

Sd/- Sd/-

ORDER

PER: SHRI RAHUL BHATNAGAR, HON'BLE MEMBER (T)

This Company Petition filed jointly by the Petitioner Companies in connection with the proposed scheme of amalgamation of the Transferor Company No.1 and Transferor Company No.2 with Transferee Company is coming before us for admission and for fixing a date of hearing of the main Company Petition as well as for a direction in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to date of hearing of the Petition and calling for the objections, if any, to the proposed Scheme of Amalgamation (hereinafter for brevity referred to as "SCHEME") as contemplated between the Petitioner Companies and their respective shareholders and creditors.

From the records, it is seen that the First Motion Application seeking direction for dispensation of the meeting of Shareholders, Secured Creditors and Unsecured Creditors was filed before this Bench vide CA (CAA) No.44/(ND)/2022 and based on such joint application moved under Sections 230-232 of the Companies Act, 2013, this Bench vide order dated 08.06.2022 had given the following directions:-

(i) With respect to Petitioner Company No.1, the requirement of convening the meetings of the equity shareholders and unsecured creditors of the Petitioner Company No.1 were dispensed with. The Petitioner Company No.1 has no

Secured Creditors therefore, the necessity of convening the meeting does not arise.

(ii) With respect to Petitioner Company No.2, the requirement of convening the meetings of the equity shareholders and unsecured creditors of the Petitioner Company No.2 were dispensed with. The Petitioner Company No.2 has no Secured Creditors therefore, the necessity of convening the meeting does not arise.

(iii) With respect to the Petitioner Company No.3, the directions were given to convene the meetings of the equity shareholders of the Petitioner Company No.3 through video conferencing/ other Audio Visual means. Further, the requirement of convening the meetings of its unsecured creditors was dispensed with. The Petitioner Company No.3 has no Secured Creditors therefore, the necessity of convening the meeting does not arise.

The Petitioner Company No.3 on 27.07.2022 had preferred a Company Appeal (AT) No. 147 of 2022 before the Hon'ble NCLAT being aggrieved by the direction of convening the meeting of the equity shareholders of the Petitioner Company No.3 vide order dated 08.06.2022 in C.A.(CAA)44/ND/2022.

The Hon'ble NCLAT vide order dated 08.06.2022 in Company Appeal (AT) No. 147 of 2022 had set aside the order dated 08.06.2022 in C.A.(CAA)44/ND/2022 insofar as the convening the meeting of the equity

shareholders of the Petitioner Company No.3. Accordingly, the requirement of convening the meeting of the equity shareholders of the Petitioner Company No.3 is dispensed in view of Hon'ble NCLAT order dated 08.06.2022 in Company Appeal (AT) No. 147 of 2022

Thereafter this petition on second motion is coming up before us for fixing a date of hearing as well as for other consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016. Accordingly, it is now hereby ordered as follows: -

(i) Notice of the hearing of the main Company Petition shall be advertised in two newspapers namely, "Financial Express" (English Delhi edition) and "Jansatta" (Hindi Delhi edition) not less than 10 days before the next date fixed for hearing the petition.

(ii) In addition to the above public notice, each of the Petitioner Company shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; (b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs; (c) the concerned Income Tax Department; and to such other Sectoral Regulators or Authorities which are likely to be affected, at least clear 30 days before the date fixed for hearing of the above Petition. Further the Petitioner Company No.1 /Transferor Company No.1 and Petitioner Company No.2/ Transferor Company No.2 shall serve the notice of the Petition to the Official Liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi-11001 at least clear 30 days before the date fixed for hearing of the Petition.

Sd/- Sd/-

(iii) Further, notice shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

(iv) All the Petitioner Companies shall at least 7 days before the date of hearing of the Petition file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulator(s) as well as to Objectors, if any.

(v) Objections, if any, to the Scheme contemplated by the authorities to whom notice has been given on or before the date of hearing fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities by this Tribunal and subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vi) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's statutory auditor.

(vii) The next date of hearing of the Petition shall be on 06.03.2023 for the consideration of the approval of the Scheme of Amalgamation as contemplated between the Petitioner Companies.

Copy of the order be served to the parties.

Sd/-
(SHRI RAHUL BHATNAGAR)
MEMBER (T)

Sd/-
(JUSTICE TELAPROLU RAJANI)
MEMBER (J)